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February 19, 2026

Via Electronic Mail and ECF

Presiding Justice
Commercial Division
Supreme Court of the State of
New York
County of New York
60 Centre Street
New York, NY 10007

Re: Dr. Peter Daszak, Ph.D. v. EHA, et al.; Index No. 164611/2025

Your Honor:

I am a member of the Bar of the State of New York. I am the attorney for the plaintiff Dr. Peter Daszak, Ph.D. ("Dr. Daszak" or "Plaintiff"). The defendants are represented by Mr. Joseph Anci, Esq. of Jackson Lewis, LLC. This letter responds to Joseph Anci, Esq,'s letter to the Court of February 10, 2026 (Dkt. No. 33) (the "Anci Letter"). (Dkt. No. 33.) For all the reasons set forth below, we oppose the Anci Letter's request for permission to move the Court to dismiss the Complaint.

I.
Overview

The Plaintiff in this action seeks money damage to remedy the defendants (i) age discrimination in violation of the New York State Human Rights Law, (ii) age discrimination in violation of the New York City Human Rights Law and (iii) breach of contract. The defendants' claim to be immune from their unlawful conduct which was perpetrated in the State, City and County of New York because they are a Not For Profit Corporation. We respectfully submit that because the defendants have sorely mistaken both the law and the facts, permission to file a pre-

answer motion to dismiss should not be granted as the motion would be futile. New York does not offer the defendants a safe harbor to behave unlawfully in the State, City and County of New York.

II.
The Complaint States Claims for Age Discrimination

As this Court has held:

> As to the substance of the NYSHRL and the NYCHRL, it is unlawful for an employer to fire or refuse to hire or otherwise discriminate against an employee because of a disability. Executive Law § 296 (1) (a); Administrative Code § 8-107 (1) (a). **Both the NYSHRL and the NYCHRL require that their provisions be "construed liberally" to accomplish the remedial purposes of prohibiting discrimination.** Executive Law § 300; Administrative Code § 8-130; see Matter of Binghamton GHS Employees Fed. Credit Union v State Div. of Human Rights, 77 NY2d 12, 18, 564 N.E.2d 1051, 563 N.Y.S.2d 385 (1990), Williams v New York City Hous. Auth., 61 AD3d 62, 65-66, 872 N.Y.S.2d 27 (1st Dept 2009); see also Vig v New York Hairspray Co., L.P., 67 AD3d 140, 146, 885 N.Y.S.2d 74 (1st Dept 2009) ("the State HRL accords greater disability protection than the Americans with Disabilities Act (ADA), and . . . the City HRL provides even broader [*9] protections still").

*MARIA BORBON, Plaintiff, v. AREA 145, INC. d/b/a/ AREA 145 DAY CARE CENTER and BRENDEL WOOLFORD in her individual and official capacity, Defendants., 2015 N.Y. Misc. LEXIS 4985, *8-9* (Supreme Court, NY County 2015)(emphasis added).

Notably, like the plaintiff Dr. Daszak, the plaintiff Ms. Borbon was employed by a Not-for-profit corporation. Like the plaintiff Ms. Borbon, Dr. Daszak's claims ought to survive, notwithstanding his employment by a Not-for Profit corporation[1].

Nor does the law of the Commonwealth of Massachusetts, where

Defendants reliance upon *Epstein v. Epstein Teicher Philanthropies* is mistaken, as that case is inapposite and does not involve intentional discrimination under either the NYSHRL or the NYCHRL.

the defendant EcoHealth Alliance, Inc. ("EHA") is incorporated, offer the defendants any solace.

Indeed, G. L. c. 231, § 85W, provides:

> no person who serves without compensation … as an officer, director or trustee of any nonprofit charitable organization … shall be liable for any civil damages as a result of any acts or omissions relating solely to the performance of his duties as an officer, director or trustee; provided, however, that the immunity conferred by this section shall not apply to any acts or omissions intentionally designed to harm or to any grossly negligent acts or omissions which result in harm to the person."

Quoted in Lynch v. Roxbury Comprehensive Community Health Center, Inc., 94 Mass. App. Ct. 528, (Appeals Court, 2018) (n.16). Plaintiff here complains of intentional acts which were plainly designed to inflict harm upon him in violation of both New York and Massachusetts law.

III.
Defendant EHA Breached Dr. Daszak's Employment Contract

Dr. Daszak's complaint alleges all of the elements of a breach of contract. (Dkt. No. 2, ¶¶'s 72-82.)

According to EHA's written Employee Handbook, he was entitled to two weeks severance for each of the 24 years of his employment. (Dkt No. 2, ¶¶'s 72-82) According to EHA's By-laws which are exhibited to the Complaint (Dkt. No. 4), he was entitled to a hearing before the entire Board before he could be dismissed as a director of EHA.

Annexed to the Complaint as Exhibit 3 (Dkt. No. 5) is a census of each of the persons who were dismissed and received severance. Dr. Daskak was fired summarily and without a hearing of any kind. He received no severance, even though all of the persons whose employment was terminated received severance. Id. The verbal allegation he received alleging that he was terminated for cause is a sham which was invented as a pretext to defeat his contractual rights.

Defendant's reliance on *Thomas v. Mintz* is beside the point.

(Dkt No. 22 at 3.). That case holds that:

> "A complaint for breach of contract must allege the provisions of the contract upon which the claim is based" (Copeland v Weyerhaeuser Co., 124 AD2d 998, lv dismissed 69 NY2d 944). It must "set forth the terms of the agreement upon which liability is predicated, either by express reference or by attaching a copy of the contract" (Chrysler Capital Corp. v Hilltop Egg Farms, 129 AD2d 927, 928).

Valley Cadillac Corp. v. Dick, 238 A.D.2d 894, 894 App Div. (4th Dep't 1997). In fact, that case demonstrates that the plaintiff's claim for breach of contract is well pled. The Complaint cites both the employment handbook and the By Laws are attached as an exhibit. The details of the contract and its existence are pled precisely.

IV.
Conclusion

No motion to dismiss should be permitted. Neither the facts, nor the law, warrant an apparently dilatory motion to dismiss in this complex Commercial Division action.

Respectfully submitted,

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